

Application in a Proceeding

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 - CHAPTER 5

Federal Circuit and Family Court of Australia (Division 2) (General Federal Law) Rules 2021 - CHAPTER 1, PART 4, DIVISION 1

Please type or print clearly and mark [X] all boxes that apply. Attach extra pages if you need more space to answer any questions.

Filed in:

- ☒ Federal Circuit and Family Court of Australia
☐ Family Court of Western Australia
☐ Other (specify) _____

Type of proceedings:

- ☒ Family law proceedings
☐ Migration proceedings
☐ General federal law proceedings
☐ Other (specify) _____

Filed on behalf of:

Full name Stephen Christopher Cooke

Client ID _____

File number (P)NCC3896/2023

Filed at NEWCASTLE

Filed on _____

Court location NEWCASTLE

Court date _____

Time _____

IMPORTANT: Information for respondents to the application is on page 4.

Part A About the parties

1 APPLICANT 1

Family name as used now

Cooke

Given names

Stephen Christopher

APPLICANT 2

Family name as used now

Given names

2 What is your contact address (address for service) in Australia? If you give a lawyer's address, include the name of the law firm.

C/-Ramsden Family Law Pty Ltd
Level 3, 1 Castlereagh Street, Sydney

State NSW Postcode 2000

Phone 1300 749 709

DX

Lawyer's code RAM7921757

Email mshepherd@ramsdenlaw.com.au

RESPONDENT 1

Family name as used now

Cooke

Given names

Heather Anne

RESPONDENT 2

Family name as used now

Given names

Respondent's address

c/- Delaney Roberts Family Lawyers
274 Brunker Road, Adamstown

State NSW Postcode 2289

Phone 02 4952 3901

Email aroberts@delaneyroberts.com.au

If there is a second applicant or second respondent attach a separate sheet answering this question for Applicant 2/Respondent 2.

Part B About the independent children's lawyer (if appointed)

3 Independent children's lawyer family name Given names

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4 The contact address (address for service) in Australia for the independent children's lawyer is:

	State	Postcode
Phone		
Email		
Lawyer's code		

Part C About the orders you are seeking – family law proceedings only

If you are seeking interlocutory orders in family law proceedings, complete this Part.
If you are seeking interlocutory orders in migration or general federal law proceedings, skip this Part and complete Part D.

5 What type of orders are you seeking? Mark [X] all boxes that apply.

- | | |
|---|--|
| ☐ Interlocutory (parenting orders) | ☒ Interlocutory (financial orders) |
| ☐ Procedural | ☐ Other (specify) _____ |

Do you want this application to be dealt with in the absence of the parties in accordance with Part 5.3 of the Family Law Rules?

☐ Yes – see the notes below

☒ No

Notes

- a) If the respondent objects to the application being determined in the absence of the parties you still must attend the court.
- b) If the application is to be heard in the absence of the parties each party must file at least 2 days before the hearing a list of documents to be read by the Court and a supporting submission (see rule 5.15 of the Family Law Rules).
- c) An enforcement hearing cannot be held in the absence of the parties.

Part D The orders you are seeking

6 State the interlocutory orders that you are seeking.

[PLEASE NUMBER EACH ORDER SOUGHT]

1.	That this Application in a Proceeding be heard on an urgent basis.
2.	Order 7 made on 11 April 2024 be replaced as follows: (a) the wife is to pay interim spousal maintenance to the husband in the sum of \$1,200.00 per week, from the date of these orders for a period of 3 months. (b) Thereafter, the wife is to pay interim spousal maintenance to the husband in the sum of \$800.00 per week until further Order.
3.	That the Wife pay to the Husband within 7 days: (a) arrears of spousal maintenance owing pursuant to the Order 7 of 11 April. (b) arrears of payments not paid by her to costs of the Merewether property pursuant to Order 4 of 11 April 2024.
4.	That Order 2(e) of the Orders of 11 April 2024 be discharged.
5.	That Order 2f be substituted with "In payment of the remainder to be held in the trust account of the Applicant Husband's Solicitor."
6.	That the Applicant wife pay the husband's costs of this Application in a Proceeding.

Attach extra pages if you need more space.

Part E Certification

I certify that to the best of my knowledge and information, the orders sought in this application are supported by evidence.

Part F Signature of applicant or lawyer

Signed	Date
	19/07/2024

This application was signed by ☒ the applicant/s ☐ lawyer for the applicant

This application was prepared by ☐ applicant/s ☒ lawyer

Matthew Shepherd

RAM7921757

PRINT NAME AND LAWYER'S CODE

Please go to page 4 for the Important Notices to the Respondent/s

Important Notices to the Respondent/s

You should seek legal advice about this application.

For all family law applications

If you oppose the orders sought in this application or want the Court to make different orders **you must:**

- file with the Court a *Response to an Application in a Proceeding*; **and**
- serve a copy of the documents filed on each other party not less than 2 days before the Court date shown on page 1 of this form.

You must attend at court on the date shown on page 1 of this form, unless you agree with the applicant's request that the Court determine the application in the absence of the parties. If you object to the applicant's request, you must immediately notify the Court and the other party in writing, telling them of your objection.

If you are required to attend and you do not attend, orders may be made in your absence.

If the application is to be determined in the absence of the parties each party must file at least 2 days before the hearing a list of documents to be read by the court and a supporting submission (see rule 5.15 of the Family Law Rules).